

02:00 PM **LINE 5**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Production Set 3

TENTATIVE RULING:

Initially, the court notes that plaintiff has not provided the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff Kevin Ramos' *1st Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Production Set #3* (Motion) is **DENIED**.

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

Defendant responded to plaintiff's Request for Production (RFP) Set #3 on January 20, 2026. (Ramos Decl., ¶ 2.) Plaintiff filed an initial version of this Motion on January 29, 2026. Plaintiff then filed a further version of this Motion on March 5, 2026, and yet another version of this Motion on June 22, 2026. Because June 22, 2026, was the last day to file a motion for hearing on July 15, 2026 (Code Civ. Proc., § 1005, subd. (b)), the court regards the moving papers filed on June 22, 2026, to be the operative motion, and disregards the earlier filed papers.

No proof of service has been filed. However, defendant has waived any defects in or irregularities of notice by filing an Opposition to the Motion. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

B. The Motion is Denied

Plaintiff seeks further responses to all of his Requests for Production (“RFP”) Set #3, Nos. 1-3. Plaintiff asserts that his requests are relevant to supporting his claims and locating evidence and witnesses.

Plaintiff states that during the alleged incident on May 17, 2024, he “noticed dozens of San Mateo County Transit District employees and vehicles within 100 meters of the incident,” and each bus has cameras, etc., installed. (Ramos Decl., ¶ 6.) Plaintiff now seeks to identify witnesses, and seeks audio and video recordings from defendant’s vehicles near to the bus on which the incident occurred. Specifically, he seeks location data for defendant’s vehicles and personnel that were within 100 meters of the bus he was riding on between 4 and 6 p.m. on May 17, 2024.

Plaintiff asserts that defendant’s objections thereto were irrelevant, unmeritorious, and unsupported. (Code Civ. Proc., § 2030.300, subd. (a)(3).)

A propounding party may move to compel further responses where the responding party’s statement of compliance is incomplete (Code Civ. Proc., § 2031.310, subd. (a)(1)), its representation of inability to comply is incomplete, inadequate, or evasive (*id.*, § 2031.310, subd. (a)(2)), or an objection is meritless or overly general. (*Id.*, § 2031.310, subd. (a)(3).)

Although some of defendant’s objections appear to include irrelevancies, defendant’s objections that the discovery requests are overbroad are well taken.

As to RFP No. 1, plaintiff seeks all location data of defendant’s buses that were within 100 meters of the bus on which plaintiff claims to have been attacked “at any time near the time in which INCIDENT was occurring (approximately between 4:00 pm and 6:00 pm), within 100 meters” as his bus “traveled from Belmont, Ca to Palo Alto, Ca.” (Pltf’s Motion, Sep. Stmt., at p. 10:3-8.) Plaintiff states that he seeks the identities of drivers who may have seen the incident, and vehicles that may have recordings. (*Id.*, at p. 11:8-13 [RFP No. 3].)

Plaintiff has alleged that the incident occurred on the bus on which he was a passenger and outside the bus at the Redwood City transit center. The request for location data of all buses within 100 meters of the bus on which plaintiff was allegedly injured is overbroad and disproportionate to this lawsuit. Indeed, plaintiff has offered no explanation for how the location of a bus or other vehicle within 100 meters of the bus he was riding in at the time of the incident would lead to the discovery of evidence regarding whether defendant failed in its obligations to “use the utmost care and diligence” for the “safe carriage” of plaintiff on the particular bus where he claimed to have been assaulted by a third party. (Civ. Code, § 2100; *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224-225 (*Calcor*).) The request therefore does not “appear[] reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.)

As to RFP No. 2, plaintiff seeks the same data for “all NON-BUS VEHICLES[.]” Though the phrase “NON-BUS VEHICLES,” is capitalized, plaintiff has not defined this term. Plaintiff

explains that he seeks the identities of drivers who may have seen the incident, and vehicles that may have recordings thereof. (Pltf's Motion, Sep. Stmt., at p. 13:15-20.) However, even if the request is limited to non-bus vehicles that are owned or operated by SamTrans, the request is likewise overbroad and disproportionate. (*Calcor, supra*, 53 Cal.App.4th at pp. 224-225.)

As to RFP No. 3, plaintiff seeks the same data for defendant's employees. Plaintiff again explains that he seeks the identities of witnesses. (Pltf's Motion, Sep. Stmt., at p. 15:18-20.)

Defendant's objections range widely. However, the presence of every vehicle and every employee of defendant within 100 meters of the bus on which plaintiff is alleged to have been attacked, along a ten-mile route from Belmont to Palo Alto over the course of two hours is overbroad, and as defendant asserts in its Opposition, would result in the production of a substantial quantity of data unrelated to the incident, and would compromise the privacy interests of bystanders. There is no reason to believe that someone who was in a bus or other vehicle owned by SamTrans within 100 meters of the alleged incident was a "witness" to the incident. Accordingly, the request is overbroad and does not "appear[] reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010; *Calcor, supra*, 53 Cal.App.4th at pp. 224-225.)

In Reply, plaintiff declares that the incident took place partly outside the bus: "At the Redwood City Transit, the attacker attacked me outside of a bus and caused us to obstruct several San Mateo County Transit District vehicles." (Ramos Decl. in Reply, ¶ 5.) Plaintiff declares that during the incident, he interacted with many of defendant's employees, including at least one supervisor with whom he spoke. (*Id.*, ¶¶ 6-7.) Further, plaintiff claims he made eye contact with many of defendant's employees who were driving defendant's vehicles. (*Id.*, ¶ 4.)

Plaintiff's discovery requests are not limited to identifying those with whom he claims to have interacted, such as the supervisor who arrived in response to the bus driver's call, and those at the transit station. Had the parties engaged in a meaningful meet-and-confer process, plaintiff could have refocused his discovery requests to seek the identities of the persons he claims to have encountered (e.g., the supervisor, or other SamTrans employees) as well as others in the actual vicinity of the bus who allegedly saw the incident (e.g., the bus driver or other passengers, or other SamTrans personnel at the transit center). During the meet and confer process, plaintiff could have narrowed his overbroad discovery requests to focus on obtaining evidence pertaining to actual witnesses to the alleged incident, as well as any policies, practices, or procedures relating to defendant's efforts to secure safe carriage for its passengers.

Discovery motions are disfavored; the parties are required to meet and confer in good faith to attempt to reach a compromise. "A reasonable and good-faith attempt at informal resolution entails something more than bickering with deponent's counsel Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) The discovery statutes "require[s] that there be a serious effort at negotiation and informal resolution." (*Id.*, at p. 1438.)

For these reasons, the Motion is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 6**

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KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Motion to Compel Further Responses Regarding the Defendant's Responses to Special Interrogatories Set 14

TENTATIVE RULING:

Initially, the court notes that plaintiff has not provided the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff Kevin Ramos' *1st Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Special Interrogatories Set 14* (Motion) is **DENIED**.

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC for "Premises Liability/Negligent Security" is pled solely against SamTrans.

Defendant responded to plaintiff's Special Interrogatories (SROGs) Set #14 on January 20, 2026. (Ramos Decl., ¶ 2.) Plaintiff filed an initial version of this Motion on January 29, 2026. Plaintiff then filed a further version of this Motion on March 5, 2026, a further "First Amended" version of the Motion on March 25, 2026, and the instant Motion on June 22, 2026. Because June 22, 2026, was the last day to file a motion for hearing on July 15, 2026 (Code Civ. Proc., § 1005, subd. (b)), the court regards the moving papers filed on June 22, 2026, to be the operative motion, and disregards the earlier filed papers.

No proof of service has been filed. However, defendant has waived any defects in or irregularities of notice by filing an Opposition to the Motion. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)
